DHIREN SHANTILAL GOVAN
versus
REENA NARENDRA GOVAN (née GOPAL)

HIGH COURT OF ZIMBABWE
PHILLIPS J
HARARE: 13, 14 and 22 July 2026

Opposed Application

L Uriri, for the applicant
F Mahere, for the respondent

PHILLIPS J:

Introduction

1. This is an opposed chamber application in terms of Rule 21(1) of the High Court Rules, 2021. The applicant asks the court to give judgment in accordance with a written document signed by the parties' legal practitioners on 22 November 2024 and filed with the registrar on 3 December 2024. The document was headed "Interim Consent Order". It was not then made an order of court.

2. The application has a long history. It need not have had one. The divorce summons was issued on 3 April 2023. More than three years have passed. The parties' daughter, Veera, was six years old when the action began. She is now nine. The principal responsibility of this court is to bring lawful order to the litigation without sacrificing the child's welfare to procedural haste or the parents' dispute.

3. The present question is narrow in nature. It is not whether the document already is an order. The Supreme Court has held that it is not. It is not an application to set the document aside. No such application is before me. Nor am I asked in this application to grant a decree of divorce or finally determine custody. The question is whether the requirements of Rule 21(1) have now been met and, if so, whether there is any valid legal, public-policy or child-welfare reason why judgment should not be entered in accordance with the severable parts of the consent.

4. The respondent raised several preliminary and threshold objections. In substance she contended that the matter is *res judicata*; that Rule 21(1) cannot operate in an action for divorce; that the legal practitioner who signed for her was not the individual who had entered the original appearance to defend; that the agreement is internally contradictory, expired and no longer consensual; that the founding papers disclose no cause of action; that the proposed order impermissibly alters the pre-trial conference order; and that the judgment of my sister Judge, MAXWELL J in HH 260-26 expanded the issues for trial and precludes the relief now sought. She also relied on the best interests of the child.

5. This court heard the preliminary points and the merits together. That course avoided further interlocutory detour. It also permits every material objection to be decided in this judgment.

6. For the reasons which follow, the preliminary points are dismissed. The application succeeds, but not in the overbroad terms of the applicant's draft order. The consent is enforceable according to its proved terms. Final custody and whether it is in Veera's best interests to attend Springvale House Preparatory School, or a primary school of equal standing, remain for trial. The agreement about Peterhouse Girls' School, or a secondary school of equal standing, is not one of the reserved questions. Any proprietary claim not actually covered by the document is preserved for separate adjudication under Section 7 of the Matrimonial Causes Act [*Chapter 5:13*].

Factual background

7. The parties married at Karoi on 24 July 2016. One child was born of the marriage, Veera Govan. The contemporaneous pleadings and the document record her date of birth as 13 December 2016.

8. The applicant instituted divorce proceedings under case number HCH 2292/23, now referred to as HCHF 2292/23, on 3 April 2023. The respondent pleaded on 4 May 2023. At a pre-trial conference before my sister Judge, TSANGA J on 3 November 2023, the issues included final custody, maintenance and the child's schooling.

9. On 26 February 2024, an order by consent under HCH 6478/23 regulated the applicant's access to Veera. The full terms of that order were not reproduced in the present record. Its existence and continued relevance were, however, accepted by both parties and are expressly referred to in the document of 22 November 2024.

10. The divorce trial was initially to commence in October 2024. It did not. The parties requested time to negotiate. There were several postponements. Their negotiations culminated in the four-page document signed on 22 November 2024.

11. The document firstly recorded matters upon which agreement had been reached. Those were—

    (i) that a decree of divorce should be granted at the final determination of the action;

    (ii) that the applicant would continue to pay Veera's school fees, school uniforms and medical aid and, in addition, US$250 per month as maintenance until she attained majority or became self-sustaining, whichever occurred first;

    (iii) that there would be no order for spousal maintenance in favour of the respondent;

    (iv) that, pending final custody, the parents would share custodial periods comprising half of each school holiday, alternate weekends during school terms, alternate birthdays, alternate public holidays and alternate Diwali festivals;

    (v) that the parents would consult one another on material decisions concerning the child and, if they could not agree on a matter likely to affect her life, health or morals, either could approach a judge in chambers for a determination in her best interests;

    (vi) that Veera would attend Peterhouse Girls' School for secondary education, or another private boarding school of equal standing, at the applicant's cost and subject to the availability of a place;

    (vii) that both parents would attend post-divorce counselling by a certified clinical psychologist and therapist and that Veera would receive counselling from an appropriately qualified child therapist and clinical psychologist;

    (viii) that each party would retain exclusive ownership of the movable property in his or her possession;

    (ix) that each party would bear his or her own costs in the divorce action; and

    (x) that neither parent would remove Veera from Zimbabwe without the other's consent by affidavit, such consent not to be unreasonably withheld for a legitimate holiday, medical or other beneficial purpose upon production of an itinerary and return tickets.

12. The document then stated, in express terms, that agreement had not been reached on final custody or on whether it was in Veera's best interests to attend boarding school at Springvale House Preparatory School for her primary education, or another private primary boarding school of equal standing. It described those as "the sole questions for determination".

13. The operative portion postponed the trial to 14–16 January 2025. Pending the trial and final divorce, it continued the order under HCH 6478/23 subject to additional handover provisions involving Dr Debra Machando. Veera was to attend the psychologist before the applicant's periods of access or custody; the respondent would leave her at the psychologist's rooms at least 90 minutes before the scheduled handover; and the applicant would collect and return her through the psychologist.

14. The document was signed for the applicant by ChimukaMafunga Commercial Attorneys and for the respondent by Whatman & Stewart Law Firm. At that time Whatman & Stewart had assumed agency for the respondent after her previous legal practitioners had renounced agency. The document was filed with the registrar on 3 December 2024.

15. The parties and their legal practitioners proceeded on the mistaken footing that signature and filing had made the document a court order. On 20 January 2025 the respondent commenced HCHF 223/25, principally for discharge of what she described as an interim order and, alternatively, for its setting aside under r 21(2). On 17 March 2025 this court set it aside and directed the main matter to trial.

16. The applicant appealed. In *Govan* v *Govan* SC 21/26, delivered on 3 March 2026 the Supreme Court held that no judgment by consent had ever been granted. Rule 21(2) was therefore not engaged. Exercising its review power under s 25 of the Supreme Court Act [*Chapter 7:13*], the Supreme Court set aside the entire proceedings under HCHF 223/25 as a nullity.

17. That was not the end of the Supreme Court's reasoning. It explained the precise procedure that had been omitted. It held that a defendant may sign a consent personally or "through his or her legal practitioner"; that the consent must be filed; and that the plaintiff may thereafter make a chamber application under Rule 21(1), upon which a judge may give judgment in accordance with the consent. It added that the same principle applies where both parties have signed a consent paper which they desire to have converted into a judgment.

18. The Supreme Court found as a fact that the parties had signed an agreement which they intended to register as an order. Because the Rule 21(1) chamber application had not been made, the agreement was left "standing firmly on its own". It further held that no application had been made to set that agreement aside.

19. The present application, issued on 13 April 2026, supplies the omitted chamber step. It was opposed. The document, the judgments and the material pleadings were annexed or incorporated into the affidavits. This court heard the parties fully on 13 and 14 July 2026.

The judgment of MAXWELL J

20. A related procedural development must be addressed at this time. Before the Supreme Court delivered its judgment, the respondent had applied under Rule 41 for leave to amend her plea and counterclaim. She sought to claim a 50 per cent interest in Flat 3 Rosefriars, Lonsdale Road, Harare; 151 Crescent Lane, Karoi; and the applicant's alleged interest in Shoes and Sport (Private) Limited.

21. My sister Judge, MAXWELL J heard the amendment application on 24 November 2025. The Supreme Court judgment was brought to her attention on 6 March 2026. On 18 March 2026 she granted leave to amend in *Govan* v *Govan* HH 260-26, HCHF 1188/25.

22. The respondent submitted that HH 260-26 decided that the number and nature of the issues for trial had expanded and that the present application impermissibly concealed or contradicts that judgment. Respectfully, that submission assigns to HH 260-26 a decision which it did not make.

23. The only question before MAXWELL J was whether the proposed pleading should be permitted. She considered the familiar amendment factors: prejudice, explanation, bona fides, the existence of a triable issue and prospects sufficient to justify pleading the claim. She did not decide ownership, beneficial interest, distribution, the meaning of the 22 November document, or its continued legal effect. Leave to plead a claim is not judgment on that claim.

24. MAXWELL J said this expressly. She recorded that the question whether the pleadings could be amended was not before the Supreme Court and that SC 21/26 therefore did not determine the amendment application. The converse is equally true. The amendment application did not determine the question which the Supreme Court had decided about the existence and procedural position of the signed agreement.

25. By the time HH 260-26 was delivered, MAXWELL J was bound by the Supreme Court's decision that the parties had signed an agreement intended for registration, that no r 21(1) application had previously been made, that no application had set the agreement aside, and that the agreement stood on its own. Nothing in HH 260-26 purports to depart from those holdings.

26. The leave to amend remains effective. It does not, however, convert a proposed proprietary allegation into an adjudicated right or create a legal basis for refusing to determine the present application. The correct course is to identify what property the agreement actually covers and preserve any genuinely residual claim for separate adjudication. That course gives effect to both judgments.

Relief sought

27. The applicant's draft order asks that custody and schooling be referred to trial and that maintenance, access, financial provisions, proprietary claims and all other ancillary matters be governed by the agreement. It also seeks costs on the legal-practitioner-and-client scale.

28. There are two difficulties with that formulation. First, the document records agreement on Peterhouse Girls' School for secondary education. Only Springvale House Preparatory School, or an equivalent primary school, was reserved. Referring secondary schooling to trial would contradict the consent.

29. Second, the document deals expressly with movable property in the parties' respective possession. It does not identify or distribute the three immovable or corporate interests later pleaded with leave under HH 260-26. A general order declaring every proprietary claim governed by the document would be wider than the consent. A court enforcing a compromise must not enlarge it.

30. These defects do not require dismissal. Rule 58(27)(b) permits the court to grant a variation of the relief sought, whether or not general or other relief was prayed. In *Mabhena* v *Mbangani* HB 57/18 the court correctly observed that an application is not defeated merely because its draft order is defective; the court grants the order proved. That power does not authorise the court to compose a different compromise for the parties. *Mafisa* makes that limit plain. The court may exclude relief which was not agreed, distinguish terms which operate now from those intended for the final decree, and preserve the court's statutory welfare jurisdiction. It may not improve, dilute or add to the

bargain. The respondent identified the defects, argued them fully and can suffer no procedural prejudice from an order confined to the consent actually proved.

31. The order at the end of this judgment therefore reproduces the agreed words in its operative provisions, preserves the status question for the proper matrimonial hearing, reserves the two genuinely disputed child questions for trial, leaves the extant access order undisturbed, and separates any residual proprietary claim which has duly been pleaded. That structure gives judgment according to the consent without pretending that every clause had the same commencement or the same susceptibility to continuing welfare supervision.

Issues for determination

32. The following issues arise—

(i) whether the prior proceedings or judgments render this application res judicata or otherwise incompetent;

(ii) whether Rule 21(1) is available for the severable, non-status parts of the parties' agreement;

(iii) whether the phrase "a legal practitioner who has entered appearance to defend" permits signature by the defendant's legal practitioner of record when the consent is concluded, although another practitioner filed the original appearance;

(iv) whether the pre-trial conference order or Rule 68(11) precludes the later curtailment of issues by agreement;

(v) whether the cause of action and the terms of consent were sufficiently disclosed;

(vi) whether valid consent existed and subsists, or whether any legally recognised ground was established for refusing enforcement; and

(vii) what order best gives effect to the agreement, the binding decisions and Veera's best interests.

The Law

Rule 21(1)

33. Rule 21(1) provides—

> "Save in actions for relief affecting status, at any time after service of summons a defendant may consent, in whole or in part to judgment without appearing in court and such consent to judgment shall be in writing and signed by the defendant

> personally or by a legal practitioner who has entered appearance to defend on his or her behalf and where the defendant has personally signed a consent to judgment, his or her signature shall either be witnessed by a legal practitioner acting for such defendant and not for the plaintiff or be verified by affidavit and upon filing a consent to judgment with the registrar the plaintiff may make a chamber application for judgment and thereafter a judge may give judgment according to the consent."

34. The rule contains both requirements and discretion. Summons must have been served. Consent may be whole or partial. It must be written and authenticated in one of the prescribed ways. It must be filed. The plaintiff must make a chamber application. Even then the judge "may" give judgment. The court is not a rubber stamp. It must be satisfied that the proposed order is within jurisdiction, lawful, clear, related to the lis, consistent with public policy and, where a child is concerned, consistent with the child's best interests.

35. Rule 21(2), by contrast, permits a judgment already given by consent to be set aside on good and sufficient cause. The Supreme Court explained in SC 21/26 that subrule (2) is triggered only after a judge has granted judgment under subrule (1). This case is at the initial stage. It is an application to enforce consent, not an application to rescind a consent judgment.

Compromise and withdrawal of consent

36. A compromise is favoured by law because it resolves or narrows uncertainty, creates enforceable rights and saves private and public resources. The principle has particular force after litigation has begun and the compromise removes issues from trial.

37. In *Tyser* v *Tyser* 2001 (1) ZLR 134 (S) at 137E–F, GUBBAY CJ rejected the proposition that a party who has signed a consent paper may resile at will before the paper is embodied in an order. A change of mind is not enough. Sound grounds for withdrawal must be established. *Stubbs* v *Stubbs (née Du Plooy)* HH 101/15 applied the same principle to a matrimonial consent paper signed after a pre-trial conference. The paper remained the parties' agreed position unless lawfully withdrawn.

38. In *Kempen* v *Kempen* SC 14/16 the Supreme Court affirmed that lawful agreements freely concluded by persons of competent capacity are ordinarily sacrosanct and enforceable. In *Golden Beams Development (Private) Limited* v *Mabhena* HH 296/21 the court restated the limited grounds upon which a compromise may be avoided, including fraud, duress, material misrepresentation and a *justus error* which vitiates true consent.

39. The point is not that a legal practitioner's signature is irrebuttable. Actual want of authority, fraud, unlawful duress, material mistake, illegality or a demonstrable conflict with a child's welfare may prevent enforcement. The point is that one of those grounds must be alleged with sufficient particularity and proved. Regret, a later reassessment of advantage, or an error about the merits which the compromise was intended to settle does not suffice.

40. *Washaya* v *Washaya* 1989 (2) ZLR 195 (H) illustrates the evidential distinction. There the legal practitioner himself gave evidence that he had settled without instructions. In *Lunat* v *Patel and Another* SC 142/21 the Supreme Court reiterated that, when a legal practitioner is blamed for a procedural default, an affidavit from that practitioner accepting responsibility is ordinarily required. The principle is not a rigid rule excluding all other proof, but it exposes the weakness of a litigant's unsupported accusation about facts peculiarly within the practitioner's knowledge.

41. Herbstein & Van Winsen, *The Civil Practice of the High Courts and the Supreme Court of Appeal of South Africa*, 5 ed, vol 1 at 282–283, records the established Roman-Dutch proposition that authority to conduct proceedings to final determination may include authority to enter a *bona fide* compromise and consent to judgment. At 943–944 the learned authors distinguish a *justus* error which vitiates true consent from an error relating only to motive or to the merits compromised. That distinction is consistent with the court in *Tyser*, *Roland* v *McDonnell* 1986 (2) ZLR 216 (S) and *Georgias v Standard Chartered Finance Zimbabwe Ltd* 1998 (2) ZLR 488 (S) at 493B–D.

42. The South African Constitutional Court expressed a useful, persuasive formulation in *Eke* v *Parsons* 2016 (3) SA 37 (CC) paras 25–26. A settlement may properly be made an order when it relates to the dispute, is lawful and constitutional, is not contrary to public policy, and holds a practical and legitimate advantage. In *Mafisa* v *Road Accident Fund* [2024] ZACC 4 paras 33–55, that court emphasised both sides of the principle: lawful compromises serve litigants and the administration of justice, but a court may not unilaterally alter the settlement while purporting to make it an order. It must accept the lawful bargain as made, refuse it, or sever what the parties themselves made severable. Peté et al, *Civil Procedure: A Practical Guide*, 3 ed at 445–455, supplies a useful academic synthesis of the same requirements. These principles are consistent with, and subordinate to, the binding Zimbabwean authorities.

43. Namibian courts have reached the same conclusion in matrimonial and other litigation. In *AN v PN* [2017] NAHCMD 275 paras 19 and 24, and *Amadhila* v *Akwenye* [2019] NAHCMD 272 paras 18–25, represented adults who had authorised settlement could not escape it because belated discomfort or "cold feet" followed. Those decisions are persuasive, not binding. Their value lies in the careful distinction between proved lack of authority and later compunction.

Best interests of the child

44. Section 81(2) of the Constitution makes a child's best interests paramount in every matter concerning the child. Section 81(3) entitles children to adequate protection by the courts, particularly the High Court as upper guardian. The duty is substantive. It is not discharged by repeating the phrase "best interests". The court must identify the interests engaged, relate the evidence to them and come up with an proportionate order.

45. *Mackintosh (née Parkinson)* v *Mackintosh* SC 37/18 concerned variation of maintenance, not custody. Its relevant principle is nevertheless direct: a court deciding a child-related question must apply its mind to the concrete interests of the particular child and receive the evidence needed to do so. In *Muteswa v Sadiqi* SC 131/21 the Supreme Court held that final custody should not be determined before the necessary investigation into the child's circumstances.

46. The constitutional principle does not mean that every adult or financial issue in a divorce must be retried whenever one party invokes the child. Nor does it mean that parents may conclusively bargain away the court's supervisory power over custody, access, maintenance or education. It requires the court to separate what is safely capable of agreement from what needs current child-specific evidence.

47. The South African Constitutional Court in *S* v *M* 2008 (3) SA 232 (CC) described the best-interests inquiry as child-centred and contextual rather than formulaic. In the different setting of a relocation dispute, the Namibian Supreme Court in *CJS v CS* [2021] NASC 40 paras 33 and 37–42 recognised that delay changes the factual world in which children live and that, after marital breakdown, family life must be permitted to move forward. The context differs, but those observations about time and the lived circumstances of a child are persuasive here.

48. Speed alone is not welfare. An incorrect order made quickly may harm a child. But delay, uncertainty and prolonged parental conflict are themselves relevant harms. A focused trial

on the two live child questions, while settled adult and ancillary matters are removed from combat, promotes both accuracy and finality.

Application of the law to the preliminary points

***Res judicata* and the effect of SC 21/26**

49. The respondent's first point is that the status and validity of the document were already adjudicated in HCHF 223/25 and SC 21/26. She relied on *res judicata* and issue estoppel.

50. I do not agree. The Supreme Court set aside the entire proceedings in HCHF 223/25. There is no extant judgment in that case capable of founding *res judicata*. A null proceeding cannot generate a binding issue estoppel. The application now before me is also juridically different: HCHF 223/25 invoked Rule 21(2) to set aside a supposed judgment; this application invokes Rule 21(1) to obtain the judgment which was never granted.

51. The respondent's reliance on the Supreme Court produces the opposite result from that intended. The Supreme Court's own judgment is valid and binding. Its necessary holdings were that the document was a signed agreement; that the parties intended it to be registered; that the agreement remained standing on its own; that no application had set the agreement aside; and that the missing procedural step was a chamber application under Rule 21(1). Those holdings were not incidental to the order. They explained why Rule 21(2) could not operate and why the earlier proceedings were a nullity. *Lytton Investments (Private) Limited* v *Standard Chartered Bank Zimbabwe Limited and Another* CCZ 11/18 confirms that a non-constitutional decision of the Supreme Court binds the parties and the courts below. This court cannot alter it by indirection.

52. This court is bound by those holdings. The respondent cannot extract the order setting aside the defective proceedings while disregarding the *ratio* which left the agreement intact and identified the route for registration.

53. The preliminary point of *res judicata* is dismissed.

Whether r 21(1) is excluded because the main action is for divorce

54. The respondent submitted that the opening words, "Save in actions for relief affecting status", exclude rule 21(1) because HCHF 2292/23 is a divorce action. She contended that the only relevant route for an agreed divorce is rule 68(11).

55. There are two answers. The first is binding authority. In SC 21/26 the Supreme Court knew that the underlying action was for divorce. It described the agreement, the decree, custody, maintenance and schooling in detail. It nevertheless held that the parties had omitted the chamber application "required by rule 21(1)" to obtain judgment in accordance with their consent. It further stated that rule 21(1) applies where parties have signed a consent paper which they wish to convert to judgment. That identification of the operative rule was indispensable to the decision. This court may not treat it as an idle suggestion.

56. The second answer follows from the Rules themselves. Rule 21(1) permits a defendant to consent "in whole or in part". Its status exception protects a change of legal status from being obtained merely by a written confession without the judicial inquiry required by matrimonial law. It does not say that parties to a composite action are forbidden to compromise severable maintenance, movable-property, access or procedural questions because the summons also seeks a decree of divorce.

57. No decree of divorce is granted in this application. The parties remain married. The agreement that a decree should eventually be granted is an admission relevant to the final hearing, but the court hearing the divorce must still be satisfied of the statutory grounds and grant the decree in the proper matrimonial process. The status exception is therefore respected.

58. Rule 68(11) addresses a different procedural situation. It provides that, in an unopposed matrimonial case, oral evidence may be dispensed with if the plaintiff files an affidavit and supporting documents, including the original consent paper, if any. The 22 November 2024 document did not render the whole divorce unopposed. It curtailed issues. Custody and the Springvale primary-school question remain contested. The case must still proceed on the opposed trial track for those matters and on the proper evidential track for the decree.

59. I make a specific finding that a written agreement which narrows issues in an opposed matrimonial action is not the complete "consent paper" contemplated for the evidential dispensation in an unopposed matrimonial case under rule 68(11). The two provisions perform different work. Rule 68(11) does not displace rule 21(1) in respect of severable, non-status relief; nor does it prohibit parties from settling part of a lis.

60. Section 7(5) of the Matrimonial Causes Act reinforces that conclusion. It expressly contemplates that, when granting a decree, the court may make an order in accordance with a written agreement concerning property and maintenance. Rule 49(2) also directs parties to attempt settlement of all or any matters in dispute. The ordinary matrimonial practice is illustrated by *Makonza* v *Makonza* HH 159/10, where a signed consent resolved almost all ancillary issues and the trial was confined to the statutory breakdown inquiry and two disputed vehicles, and by *Mutenda* v *Mutenda* HH 177/10, where custody, maintenance and movables were settled while the immovable-property dispute alone was tried. The Rules cannot sensibly be read as encouraging partial settlement but disabling its lawful recordal solely because other relief affects status.

61. The South African Supreme Court of Appeal's observation in *Arendsnes Sweefspoor CC* v *Botha* 2013 (5) SA 399 (SCA) para 18 is persuasive: procedural rules exist to administer justice and, absent an absolute prohibition, should be construed to advance fair and expeditious determination. The Namibian High Court expressed the same procedural principle in *Gamikaub (Pty) Ltd* v *Schweiger* [2015] NAHCMD 88 paras 29–31. This construction does not permit purpose to override text. It gives coherent effect to the words "relief affecting status", "in whole or in part", and the Rules as a whole.

62. The status and Rule 68 objections are therefore dismissed.

The signatory requirement: text, context and purpose

63. The next preliminary point raised concerns the words "*signed … by a legal practitioner who has entered appearance to defend on his or her behalf*". It is common cause that Venturas & Samukange entered the original appearance to defend. That firm later renounced agency. Whatman & Stewart assumed agency and was the respondent's legal practitioner of record when the consent was concluded. A practitioner at Whatman & Stewart signed it.

64. The respondent's argument was literal and personal. She submitted that only the natural person who physically entered the original appearance could sign. The Rules, she said, do not use the expression "legal practitioner of record".

65. The accepted approach to interpretation considers text, context and purpose as one integrated exercise. The text remains the starting point and a court may not impose a meaning the words cannot reasonably bear. But words do not exist without setting. In *Innscor Africa Limited and Another v Competition and Tariff Commission* SC 52/18 at

12–13 the Supreme Court required the grammatical meaning to be read with the rest of the enactment, its subject matter and content, and the provision's scope and purpose. *Ingalulu Investments (Private) Limited* v *National Railways of Zimbabwe* SC 42/22 likewise held that text, context, purpose and the broader architectural design must be considered as a whole, not piecemeal. *Zambezi Gas Zimbabwe (Private) Limited* v *N R Barber (Private) Limited and Another* SC 3/20 and *Dairibord Zimbabwe (Private) Limited* v *Chivandire t/a Chivandire Dairy* HH 90/23 adopt the same unitary approach. The comparative formulations in *Natal Joint Municipal Pension Fund* v *Endumeni Municipality* 2012 (4) SA 593 (SCA) para 18 and *Capitec Bank Holdings Ltd* v *Coral Lagoon Investments 194 (Pty) Ltd* 2022 (1) SA 100 (SCA) para 25 are consistent with it.

66. I therefore examine the words, their immediate and wider setting, and the evident function of the signature requirement.

Text

67. The phrase identifies a legal practitioner connected to the defendant's appearance in the action. It excludes a stranger and a practitioner acting only for the plaintiff. It requires a subsisting mandate on behalf of the defendant who has appeared to defend.

68. The phrase does not say "the individual legal practitioner who first physically lodged Form No. 7 and no successor". Appearance to defend is the procedural act of the defendant, ordinarily performed through the defendant's representative. The legal practitioner's described capacity is derivative: the appearance is entered "on his or her behalf".

69. The Supreme Court's paraphrase in SC 21/26 is significant. It said that the defendant may sign personally, subject to witnessing or verification, "or through his or her legal practitioner". That language captures the rule's substance. It does not freeze the mandate in the person who happened to act at the first procedural stage.

70. The present-perfect words "has entered" connect the practitioner to an appearance already in existence. They ensure that a practitioner signing for the defendant does so within an action in which the defendant has formally joined issue. They are reasonably capable of including the current practitioner who, by a duly notified assumption of agency, holds and continues that representative position.

Context

71. Rule 9 supplies the immediate procedural context. Under rule 9(2), a represented party may terminate a practitioner's mandate and appoint another. Notice must be given to the registrar and the other parties. Under r 9(4), the new practitioner's address becomes the party's address for service. Under r 9(5), a practitioner may renounce agency on reasonable notice.

72. The Rules do not require the defendant to enter a second appearance whenever agency changes. The appearance belongs to the procedural position of the defendant. The successor assumes conduct of the already defended action. The functions attached to representation must pass with the mandate unless a rule expressly makes a function personal to the former practitioner.

73. Rule 49 confirms the practical setting. Parties and their legal practitioners are expected throughout the action, including before trial, to obtain admissions, define real issues and settle all or part of the dispute. Rule 49(14) permits the trial judge to call counsel before trial to secure further agreement on matters likely to curtail the hearing. In *Marisa and Others* v *Marisa and Others* HH 121-23 and *Makonza* v *Makonza* HH 159/10, consents authenticated by the practitioners conducting the hearing were acted upon without any suggestion that authority was frozen in the individual who originally lodged the appearance. Those cases did not decide the present interpretive point, but the ordinary practice they reflect is consistent with r 9 and r 49. These provisions would be undermined if a successor practitioner could negotiate a settlement but could not authenticate it.

74. The respondent's construction also creates an internal contradiction. Once the first practitioner has renounced agency, that practitioner no longer has authority to sign for the client. Yet, on the suggested reading, the former practitioner is the only person who may sign, while the only practitioner with a current mandate may not. The Rules do not require an unauthorised former agent to perform a dispositive act.

Purpose

75. The signature requirement serves authentication and protection. It assures the court that the consent is attributable to the defendant and that the practitioner signing has a formal mandate in the action. It also protects against a purported compromise presented by a person who does not act for the defendant.

76. That purpose is best advanced by requiring the signature of the practitioner who is responsible for the file and holds the client's mandate when consent is given. A former practitioner whose mandate has ended is less, not more, capable of supplying that assurance.

77. The contrary construction would produce arbitrary procedural paralysis whenever the original practitioner dies, retires, is elevated to office, changes firms, encounters a conflict, is discharged or renounces agency. A defendant could also defeat a concluded compromise merely by changing representatives before signature. None of those consequences protects authentic consent.

78. Purpose does not license a court to replace the language chosen by the rule-maker. Here it is used to confirm a meaning the text can bear and which the context requires: "a legal practitioner who has entered appearance to defend" describes the defendant's authorised practitioner in the defended action, including a successor practitioner of record under a valid assumption of agency.

79. I accordingly find that, for r 21(1), the legal practitioner who is duly of record and authorised for the defendant at the time consent is entered may sign the consent. The rule does not reserve that function to the historical individual or firm that lodged the original appearance.

80. Whatman & Stewart was the respondent's legal practitioner of record on 22 November 2024. MAXWELL J's account of the successive renunciations and assumptions of agency confirms the chronology. Its signature satisfied the formal requirement of r 21(1).

81. This conclusion concerns procedural capacity to sign. Whether the client actually authorised the compromise is a factual issue considered below. The signatory preliminary point is dismissed.

The pre-trial conference order and later curtailment

82. Miss *Mahere* submitted that only the pre-trial judge could formulate issues for trial and that the document impermissibly reviewed or altered TSANGA J's pre-trial conference order.

83. That submission mistakes the purpose of a pre-trial conference. Rule 49 is entitled "Curtailment of proceedings". Under r 49(2), parties must attempt to reach agreement on ways to expedite trial and, where practicable, settle all or any matters in dispute. Under r

49(9), a judge may embody a settlement in an order upon chamber application. Under r 49(10)(b), the judge may limit the trial to issues not disposed of by admission or agreement. Rule 49(14) contemplates further agreement immediately before trial.

84. A pre-trial order is binding until varied or overtaken by lawful admission, compromise or further order. It is not a command that issues once identified must remain disputed forever. Such a rule would punish settlement. Parties may not unilaterally expand the lis without leave, but they may abandon or compromise claims and ask the court to record the resulting curtailment.

85. The 22 November 2024 document did not review TSANGA J's order. It resolved some of the issues which had been identified for trial and preserved two. The present order records that later compromise and gives case-management directions. This is exactly the kind of curtailment contemplated by r 49 and the phrase "in whole or in part" in r 21(1).

86. MAXWELL J later permitted a property amendment. That procedural order is addressed by separating any residual property counterclaim rather than pretending it was covered by the consent. There is consequently no conflict between judicial orders.

87. The pre-trial conference objection is dismissed.

Cause of action, incorporation and the draft order

88. The respondent contended that the founding affidavit did not reproduce every term and therefore disclosed no consent capable of judgment.

89. The application identified the divorce action, the date of the agreement, the fact that it narrowed the trial, the two reserved subjects, r 21(1), and the relief sought. It annexed the complete signed document, the earlier High Court judgment and SC 21/26. The document itself is the written juridical act upon which the cause rests. It was expressly incorporated.

90. The respondent was not left to guess. Her opposing affidavit addressed duration, authority, custody, access, maintenance, schooling, property, the psychologist and the Supreme Court's treatment of the document. Her heads and oral submissions analysed the individual clauses. There was no prejudice and no material surprise.

91. The applicant's draft was wider than the agreement in its treatment of proprietary claims and was imprecise about secondary schooling. Those are defects in proposed relief, not the absence of a cause of action. Rule 58(27) permits a narrower, accurate order. The court will not grant what was not agreed.

92. The cause-of-action and incompetent-relief objections are dismissed, subject to the limits stated in the final order.

Alleged non-disclosure of HH 260-26

93. The respondent criticised the applicant for not referring in the founding affidavit to HH 260-26, delivered shortly before this application. She invoked the duty of utmost good faith applicable to urgent or ex parte proceedings.

94. This was not an urgent *ex parte* application. It was served. The respondent opposed it, annexed HH 260-26 and was heard fully. The omission was undesirable because the amendment judgment formed part of the relevant procedural history. It was not, however, material to the Supreme Court's finding that the agreement existed or to the formal r 21 requirements. Any potential prejudice has been cured by full ventilation.

95. Dismissal would be disproportionate, particularly when the order now crafted preserves rather than extinguishes the claims permitted by MAXWELL J. The non-disclosure point is dismissed. It remains relevant to the court's refusal of punitive costs.

Application of the law to the merits

What the Supreme Court decided and what remains for this court

96. It is necessary to be precise about the reach of SC 21/26. The Supreme Court did not make the agreement an order. It did not decide an application at common law to rescind the agreement because no such application existed. It did not relieve this court of the discretion signalled by "may" in r 21(1).

97. It did, however, decide that the parties signed an agreement intended for registration; that the agreement was not extinguished by HCHF 223/25; that it stood on its own; that no proceeding had set it aside; and that r 21(1) was the procedure by which judgment in accordance with it could be sought. Those findings are the starting point, not matters open for relitigation.

98. The present court must still verify formal compliance, determine the extent and meaning of the consent, address the respondent's evidence about authority and pressure, and decide whether legality, public policy or the minor child's welfare supplies a reason to refuse or qualify the order.

The prior judgment of this court

99. The respondent heavily relied on the judgement delivered on 17 March 2025. Care is required. The Supreme Court set aside the entire proceedings in HCHF 223/25. That judgment, as the applicant observed, has no operative force, creates no *res judicata* and cannot be revived by description as persuasive authority between the parties.

100. The evidential material is now before the court on a different juridical footing. In paragraphs 15 and 16 of the present opposition the respondent expressly relied on and incorporated her founding affidavit in HCHF 223/25. The Supreme Court reproduced material parts of that account. The signed document, the sequence of representation and the absence of an affidavit from the signatory practitioners are all in the present record. I am entitled and obliged to assess that evidence afresh.

101. I therefore do not adopt the former judgment as a binding adjudication. I independently reach some of the same intermediate factual conclusions because the current record requires them. That distinction matters. It honours the Supreme Court's order while avoiding the very error of treating a null judgment as dispositive.

102. The Supreme Court identified the decisive flaw in the former reasoning. After the court had found the document validly signed, had rejected the uncorroborated attack on counsel, and had said the agreement should be honoured in the absence of a valid reason, it made an "about turn" and set it aside by invoking the child's best interests without explaining which interests required that result. The correct response is not to ignore s 81. It is to undertake the concrete analysis which was then missing.

Authority and free consent

103. The applicant seeks final relief on affidavit. The established approach to a genuine factual dispute, reflected in *Zimbabwe Bonded Fibreglass (Private) Limited* v *Peech* 1987 (2) ZLR 338 (S) and the persuasive formulation in *Plascon-Evans Paints Limited* v *Van Riebeeck Paints (Private) Limited* 1984 (3) SA 623 (A), requires the court ordinarily to accept the respondent's primary facts together with admitted facts, unless the denial is not genuine or the version is so untenable that it can be rejected on the papers. Conclusions without supporting primary facts do not manufacture a dispute. Applying that approach, and taking the respondent's incorporated account at its highest, she alleged harassment, pressure and arm-twisting before giving her legal practitioner the "go-ahead" to sign. In

this application she says there was "no proper agreement", that she understood it to be temporary, and that it would be iniquitous to register it after the lapse of time.

104. The first allegation contains an important admission. The respondent gave the instruction to sign. Her complaint was about the circumstances preceding that instruction, not that the signature was fabricated or that Whatman & Stewart had no mandate at all.

105. The agreement followed protracted negotiations and repeated postponements sought to permit settlement. The respondent was an adult of full capacity. She was represented by legal practitioners and counsel. The document is detailed. It distinguishes matters agreed from matters reserved. It was signed by the legal practitioners for both parties and filed. These objective facts are consistent with deliberation, not surprise.

106. No practitioner from Whatman & Stewart has deposed to an affidavit saying that the respondent withheld authority or that the firm exceeded its mandate. No affidavit from counsel who participated in the negotiations supports the accusation of professional misconduct. The omission is especially significant because the respondent's case attributes the decisive events to those practitioners.

107. The words "harassment", "pressure" and "arm-twisting" are conclusions. The respondent did not identify an unlawful threat, who made it, when it was made, what interest was threatened, why the pressure was illegitimate, or how it overbore her will. Ordinary forensic pressure, difficult advice, the stress of trial and a desire to bring negotiations to an end do not by themselves constitute duress.

108. There is no allegation supported by primary facts of fraud, material misrepresentation, incapacity, illegality, undue influence, common mistake or justus error vitiating consensus. There is no evidence that the applicant or his representatives induced a false belief about the terms. The terms were in writing and available to the respondent's legal team.

109. The later amendment application is not proof that the earlier consent was absent. It shows that, after changing legal practitioners again and receiving different advice, the respondent wished to advance additional property claims. New advice may explain a change of position. It does not retrospectively erase the instruction given on 22 November 2024.

110. The contemporaneous signature and filing are evidence of consensus. The later denial is evidence of regret. The former concluded the bargain; the latter does not undo it.

111. Applying the affidavit test, I make the following factual findings—

112. the respondent freely authorised Whatman & Stewart to sign the document on her behalf;

113. Whatman & Stewart acted within its mandate as her legal practitioner of record;

114. the consent was deliberately authorised after prolonged negotiations while the respondent was independently represented;

115. no vitiating ground has been established; and

116. the respondent's present opposition is a change of mind, which is not a legal basis for ignoring the consent.

117. The conclusion accords with *Tyser*, *Stubbs*, *Kempen* and the persuasive decisions in *AN* v *PN* and *Amadhila*. It does not depend on a presumption that practitioners may always settle without authority. It rests on actual authority proved by the respondent's admission, the objective record and the absence of credible contrary evidence.

Whether the agreement expired

118. The respondent submitted that the agreement was only to operate from November 2024 until the January 2025 trial date or the end of the school holiday and that events have overtaken it.

119. A document must be read as a whole. The fixed dates in operative paragraph 1 concerned postponement and set-down. They have passed and cannot sensibly be ordered now. The recitals, however, record substantive agreements intended to be incorporated "as an adjunct to a final order of divorce". Their contractual force did not end in January 2025. That does not mean that every obligation commenced at signature. The words "continue to provide" in the child-maintenance clause denote an existing obligation. The parties' post-divorce counselling, by contrast, commences after divorce. The agreed final ancillary terms are binding now as a curtailment of the lis, while their performance takes effect at the time fixed by their language.

120. The Supreme Court's statement that the agreement stood firmly on its own establishes its continued existence as a private agreement after the null proceedings. It did not decide the duration of each interim clause. That question must be answered from the document. The January postponement is spent. The final ancillary agreements survive for incorporation with the decree. The operative interim provisions were framed to bridge the

period before trial and final relief; they were not expressed to dissolve merely because the scheduled January hearing was missed.

121. The title "Interim Consent Order" does not convert every term into a three-month arrangement. Some clauses are interim; some are agreed terms for the final decree; two questions are reserved. The legal effect depends on the words of each clause, not the label alone.

122. The postponement clause is therefore spent and will not be ordered. Judgment may be entered on the surviving terms without antedating obligations or converting a post-divorce duty into a present one. The child-related terms remain subject to the court's continuing welfare jurisdiction. The distinct question whether the additional Dr Machando handover mechanism should now acquire coercive force requires current evidence and is addressed below.

Internal coherence and the extent of the consent

123. The respondent argued that the document says both that the parents have custodial rights and that custody is not agreed. She also submitted that it agrees Peterhouse but refers schooling to trial. These are not true contradictions.

124. The document uses "custodial rights" in describing an interim sharing schedule. It then reserves final custody—whether joint or sole and the arrangements which should ultimately govern—for trial. An interim physical-care arrangement can coexist with a dispute about the final custody order. The document itself says the shared arrangement is interim.

125. The schooling provisions are also severable by educational stage. The parties agreed on Peterhouse Girls' School, or an equivalent private boarding school, for secondary education. They did not agree on Springvale House Preparatory School, or an equivalent primary boarding school, for primary education. The draft order blurred that distinction. The final order does not.

126. Maintenance is expressly addressed. The applicant agreed to pay school fees, uniforms, medical aid and US$250 per month for Veera. The assertion that the document is silent on maintenance is factually incorrect.

127. Access and interim care are addressed in both the recitals and the operative clauses. The assertion that the document is silent on access is also incorrect.

128. Property is addressed only in the phrase "the movable property in his or her possession". Shares are incorporeal movables in law, but the language of physical possession, read in the setting of a matrimonial consent which did not identify a company, shareholding or value, points to corporeal movables held by each spouse. At the least, it does not clearly compromise a disputed beneficial or corporate interest. A compromise is not enlarged by ambiguity. The document therefore does not finally distribute Flat 3 Rosefriars, 151 Crescent Lane or any alleged interest in Shoes and Sport (Private) Limited. The court will enforce the agreed corporeal-movables clause and no more, without affecting the rights of the company or any third party.

129. The agreement that there should be no spousal maintenance is clear. The parents' counselling obligation is expressly post-divorce. The child-counselling and international-travel terms are capable of enforcement according to their actual words, subject to the court's ordinary power to vary a child-related arrangement on good cause and in the child's best interests.

130. The agreement that a decree should be granted is not enforced as a status order in this application. It remains an admission. The court hearing the matrimonial action must receive the evidence required by the Act and r 68 and decide whether to grant the decree.

131. Properly construed, the document is neither unintelligible nor futile. Its essential terms can be identified and given effect without rewriting them. Where an agreed child term is insufficiently supported by current welfare evidence for immediate coercive enforcement, the court may withhold that part of r 21 relief while leaving the underlying consent intact.

The test for making the agreement an order

132. The applicant has satisfied the formal r 21(1) requirements. Summons was served; appearance was entered; the consent is written; it was signed by the duly authorised practitioner of record; it was filed; and the applicant has brought the required chamber application on notice.

133. The respondent submitted that counselling and travel were not verbatim prayers in the declaration and therefore could not be ordered. The submission is too narrow. Rule 21(1) speaks of consent "in whole or in part", and the Supreme Court expressly held that the same route applies where both parties have signed a consent paper which they wish to convert into judgment. The terms concern maintenance, custody, access, education, family welfare, property and costs in the pending matrimonial lis. Counselling and travel are

ancillary incidents of the pleaded child and access disputes, not unrelated private transactions or claims against strangers. The relatedness requirement in *Eke*, and the curtailment purpose of r 49, are satisfied. This reasoning does not authorise an order beyond the signed document; it explains why the mutually agreed ancillary terms fall within the dispute which the parties compromised.

134. The terms selected for judgment are lawful. The maintenance and education provisions advance rather than diminish the child's material welfare. The movables clause and waiver of spousal maintenance are clear. The travel clause protects the child's connection to the jurisdiction while requiring consent not to be unreasonably withheld.

135. The terms have practical and legitimate advantage. They remove settled questions from trial, give the child material and educational certainty, reduce opportunities for parental conflict, and permit judicial attention to be concentrated on final custody and primary schooling.

136. The order does not conclusively bargain away the court's constitutional role. Final custody and Springvale are reserved. The interim child terms remain subject to variation on good cause. The trial court retains the powers in r 68, including the power in r 68(8) to determine whether and how the minor child's views should be received in a child-sensitive manner.

137. The agreement therefore meets the domestic requirements and the useful persuasive criteria articulated in *Eke* and *Mafisa*. There is no legal or public-policy reason to refuse the consent within its proper bounds. Consistently with *Mafisa*, the order adopts the parties' words rather than a judicially improved version of them.

The best interests of Veera

138. The respondent's strongest submission is that enforcement would be contrary to Veera's best interests. It deserves a direct determination.

139. The starting point is the child, not which parent gains tactical advantage. Veera needs stability, adequate maintenance, education, safe and predictable contact with each parent, freedom from avoidable parental conflict, and prompt determination of the two questions which directly shape her daily life. She also needs an order capable of adjustment if circumstances materially change.

140. The maintenance provisions secure school fees, uniforms, medical aid and monthly support. The secondary-school provision creates forward planning while remaining subject to availability and the court's welfare jurisdiction. The counselling provisions recognise the emotional consequences of divorce. The travel clause reduces the risk of unilateral removal while permitting beneficial travel. These terms are, on their face and on the present evidence, supportive of the child.

141. Final custody cannot safely be decided on these affidavits. It requires current evidence about Veera's circumstances, her relationships, each household, practical care, parental cooperation and any expert material which the trial court admits. In *Mpozori* v *Shongahende* HH 431-26 this court observed that best-interests factors do not exist in a factual vacuum and obtained a welfare investigation before fashioning access. *Muteswa* and *Mackintosh* likewise counsel against deciding a child-related question without the necessary evidence. Final custody is referred to trial.

142. Whether Springvale House Preparatory School, or an equivalent primary boarding school, presently serves Veera's best interests also requires current evidence. Relevant matters may include her educational needs and progress, emotional readiness for boarding, distance from each parent, continuity, her views according to age and maturity, the schools reasonably available, and the effect on contact. That issue is referred to trial.

143. It is neither necessary nor beneficial to reopen agreed adult and ancillary questions in order to decide those two child questions. On the contrary, a narrow trial is more likely to produce a timely, child-centred decision. It will permit experts and the parties to focus on Veera rather than property, spousal maintenance or issues already compromised.

144. The Supreme Court criticised the former judgment because it invoked best interests without identifying them. The present order addresses the concern by distinguishing each term, preserving current evidence-sensitive issues and accelerating their trial. It does not use best interests as a conclusion in place of reasons.

145. The additional Dr Machando mechanism requires separate treatment. The Supreme Court observed that it was not apparent from the record why the parents thought it appropriate to involve the psychologist before every handover, then correctly said that the matter was outside its remit. That was not a finding that the process harmed Veera. It was, however, a warning against assuming a present welfare foundation which the record did not disclose.

146. On the present record there is no affidavit from Dr Machando, no current professional assessment, and no primary evidence about the need for a 90-minute intervention before every exercise of the applicant's contact. The absence of proof that the mechanism is harmful is not affirmative proof that it remains necessary nearly two years later. The respondent says that Veera has since stayed with the applicant for extended periods and travelled with him. Those changed facts may diminish, rather than confirm, the need for a psychologist at every transition. None of this invalidates the agreement or the consent then given.

147. Because the court is upper guardian, it would be a dereliction of duty to give that mechanism fresh coercive force on inference alone. The existing order under HCH 6478/23 is not before me and is left undisturbed. Clauses 2.1–2.3 of the document will not now be converted into an additional order. That limited refusal is founded on the absence of current child-specific evidence, not on absence of consent. It neither creates a third issue for trial nor sets the bargain aside. The judge seized with the focused child trial may, on current evidence and after hearing the parties, reconsider any interim handover arrangement at the outset.

148. Delay has already consumed a substantial part of Veera's childhood. The litigation began when she was six. Adult litigation cannot place her family life in suspension. Her life must move on.

149. Public policy points in the same direction. The maxim *interest rei publicae ut sit finis litium* reflects the public interest in finality. As *Mafisa* explains, compromise protects both the parties and the administration of justice. In a family case, finality is not an abstract institutional preference. Properly achieved, it reduces the period during which a child lives amid unresolved parental conflict.

150. The most child-centred outcome is therefore to enforce the lawful, beneficial and clear parts of the agreement according to their actual words and timing; keep the court's supervisory power intact; leave the unseen extant access order undisturbed; try final custody and Springvale promptly on current evidence; and prevent residual adult property claims from delaying the divorce or the child questions.

Residual proprietary matters

151. The agreement compromises the corporeal movable-property issue as between the parties. It does not finally dispose of every asset which might fall within s 7 of the Matrimonial Causes Act.

152. Section 7(1) provides that, in granting a decree of divorce "or at any time thereafter", an appropriate court may order the division, apportionment or distribution of the spouses' assets. In *Musiyazwiriyo* v *Deve* 2020 (2) ZLR 179 (H) at 182F–183B, applying *Lafontant* v *Kennedy* 2000 (2) ZLR 280 (S) at 282F–G, the court confirmed that, where the decree is granted by an appropriate Zimbabwean court, residual property relief may be sought then or later. The statute itself therefore answers the suggestion that every proprietary controversy must hold the decree and child issues in suspense.

153. Rule 32(6)(b) and (c) permits a claim in reconvention to be tried separately where its subject matter ought to be disposed of separately and authorises any expedient order. The respondent received notice that the applicant sought a trial confined to the child issues and relied fully on HH 260-26 and the proposed amendment. Separation has therefore been squarely ventilated. The residual claims are likely to require discovery, valuation, proof of title or beneficial interest and possibly joinder of a company or other third party. Trying them with custody and schooling would delay and distract the child trial. Separation causes no irremediable prejudice because s 7 preserves competent relief after divorce and all pleadings, defences and third-party rights remain open.

154. The record before me establishes leave to amend, but not the terms of an amended counterclaim duly filed pursuant to that leave. The order is therefore conditional and exact. To the extent that such a counterclaim was duly filed, the claims concerning Flat 3 Rosefriars, 151 Crescent Lane and Shoes and Sport (Private) Limited are separated from the decree and the two child issues. They are neither upheld nor dismissed. They may be prosecuted after the decree under s 7, subject to proper pleadings, joinder, evidence, all available defences and third-party rights. Nothing in the order creates or validates a claim which was not duly pleaded. Residual property litigation shall not hold the divorce or Veera's future in abeyance.

Costs

155. Both parties sought punitive costs. The applicant has substantially succeeded on the central questions. The respondent persisted, after SC 21/26, in an attempt to escape an

authorised compromise without bringing proceedings to set it aside or proving a vitiating ground. That conduct warrants the court's disapproval.

156. Punitive costs are nevertheless not justified. The status exception, the timing of the agreed terms and the breadth of the draft order required careful determination. The applicant omitted HH 260-26 from the founding account, sought language wider than the agreement and asked the court to perpetuate child-related provisions without current professional evidence. The court has had to recast the proposed order substantially. The proceeding also arises in continuing family litigation in which an ordinary adverse costs order may deepen conflict to Veera's detriment.

157. Balancing success, conduct, the family context and the defects in the applicant's proposed relief, the just order is that each party bear his or her own costs of this application. The agreed provision concerning costs of the main divorce action is separately recorded according to its terms and does not determine the costs of any residual proprietary proceeding.

Disposition

158. The preliminary points are without merit. The Supreme Court has already held that Rule 21(1) is the operative rule for conversion of this signed agreement into judgment. A partial consent curtailing issues in an opposed matrimonial action is not the complete consent paper used to place an unopposed divorce before the court under Rule 68(11). The status relief itself is not granted here.

159. The phrase "a legal practitioner who has entered appearance to defend", read in its text, context and purpose, includes the defendant's duly authorised legal practitioner of record when consent is entered. Whatman & Stewart validly signed for the respondent.

160. MAXWELL J was not asked to determine and did not determine the existence or subsistence of the agreement. Her judgment granted leave to plead proposed property claims. She was bound by, and did not depart from, the Supreme Court's decision that the agreement existed and stood on its own.

161. The respondent deliberately authorised the consent while independently represented. Her present denial is a change of mind. No fraud, unlawful duress, misrepresentation, justus error, illegality, want of authority or impossibility has been proved. The absence of current welfare evidence supplies a reason to withhold immediate coercive effect from the

additional Dr Machando mechanism; it does not supply a basis for treating the parties' consent as nonexistent.

162. Judgment will be entered according to the consent only to the extent set out below. The order is deliberately precise. It reproduces rather than rewrites the agreed terms, distinguishes immediate obligations from final ancillary terms, and explains the limited part which current welfare evidence does not permit the court to coerce. It does not grant a divorce under r 21, decide final custody, decide Springvale, extinguish residual property claims, alter the unseen order in HCH 6478/23, or immunise child-related terms from later welfare review.

163. A detailed order will be made in the best interests of the child to regulate the expeditious final determination by this court of the live issues.

Order

164. In the result, it is ordered that—

1. All preliminary points and threshold objections raised by the respondent are dismissed.
2. The application for judgment by consent under r 21(1) of the High Court Rules, 2021 is granted only to the extent set out in this order.
3. The Agreement is binding between the parties according to its terms.
4. No decree of divorce is granted by this order.
5. The following travel term shall have immediate and continuing operation as a judgment by consent—

> "Neither party shall remove the minor child from Zimbabwe in the absence of an affidavit of consent of the other, which consent shall not be unreasonably withheld where such removal of the child is for legitimate holiday, medical or beneficial reasons, provided that itineraries and return tickets are availed showing that the child shall be returned to Zimbabwe."

6. Subject to paragraph 11 below, the following matters are binding upon the parties from the date of this court order as a curtailment of the issues in the main action. They shall operate as final ancillary relief if and when a decree of divorce is granted and shall then be incorporated according to their terms into the final order—

(i) "There shall be no order of maintenance in respect of the defendant."

(ii) "The plaintiff shall continue to provide for the minor child's school fees, school uniforms, medical aid and shall in addition pay USD 250.00 per month as maintenance for the minor child until she comes of age or becomes self-sustaining whichever occurs the sooner"

(iii) "It is in the best interests of the minor child aforesaid that she attends boarding school at Peterhouse Girls' School for her secondary education, or other private boarding schools of equal status, at the plaintiff's cost, subject to the availability of a place at the said schools."

(iv) "It is in the best interests of the child that both the plaintiff and defendant attend post-divorce counselling by a certified clinical psychologist and therapist."

(v) "It is in the best interests of the child that she attends counselling by a certified child therapist and clinical psychologist."

(vi) "Each party shall retain exclusive ownership of the movable property in his or her possession."

(vii) "Each party shall bear his or her own costs of suit."

7. Paragraphs 5 and 6 of this order shall remain operative after the grant of a decree and shall be incorporated into the final order together with the terms listed in paragraph 9.

8. Nothing in this order ousts the High Court's continuing jurisdiction as upper guardian of the minor child. A child-related term may be varied upon a properly instituted application supported by evidence of a material change of circumstances and demonstrating that variation is required by the child's best interests.

9. Pending determination of final custody—

a. the interim consent order granted on 26 February 2024 under HCH 6478/23 is left undisturbed and continues according to its own terms;

b. nothing in this order rescinds, suspends, supplements, varies or otherwise prejudices HCH 6478/23;

c. the recordal in paragraphs B(iv)(a) and B(iv)(b) of the Agreement shall not operate as an independent variation of HCH 6478/23, the complete terms of that order not having been placed before this court; and

d. any clarification or variation of the current interim custody regime shall be sought in the proper proceedings and determined on current evidence of the child's best interests.

10. Clauses 2.1, 2.2 and 2.3 of the Agreement, concerning compulsory attendance upon Dr Debra Machando before each exercise of access or custody, are not converted into an operative court order on the present record because—

a. no current affidavit or clinical recommendation from Dr Machando has been placed before the court;

b. the court cannot safely determine whether the stipulated process, including the repeated 90-minute intervention, remains necessary and beneficial to the child; and

c. imposing or continuing a therapeutic intervention affecting a child requires current welfare evidence rather than parental consent alone.

11. Paragraph 10—

a. does not set aside or determine the contractual validity of clauses 2.1–2.3;

b. does not create an additional issue for trial;

c. does not preclude either party from seeking an appropriate interim direction upon current professional evidence, or the trial court from considering handover arrangements as an incident of its determination of final custody.

12. The only contested child-welfare issues to be tried in HCHF 2292/23 are—

a. whether final custody of the minor child should be joint or sole and, in either event, the arrangements which best serve her interests; and

b. whether it is in the minor child's best interests to attend Springvale House Preparatory School for her primary education, or another private boarding school of equal status, at the plaintiff's cost and subject to the availability of a place.

13. The minor child's secondary education at Peterhouse Girls' School, or another private boarding school of equal status, is not an issue referred to trial, that matter having been agreed in the terms reproduced in paragraph 9.2.

14. Paragraph B(v) of the Agreement is made an order only according to its language and contextual subject matter. It finally regulates corporeal movable property in the physical possession of either spouse. It does not determine—

    a. ownership of or rights in immovable property;

    b. shares, beneficial interests or other rights in a company;

    c. property not in the possession of either spouse on 22 November 2024; or

    d. the rights of any company or other third party not joined to the Agreement or these proceedings.

15. To the extent that an amended counterclaim was duly filed pursuant to the leave granted in HH 260-26, any residual claims concerning Flat 3 Rosefriars, Lonsdale Road, Harare; 151 Crescent Lane, Karoi; or an interest in Shoes and Sport (Private) Limited—

    a. are neither upheld nor dismissed by this order;

    b. are separated from determination of the decree and the two issues identified in paragraph 12 under r 32(6)(b) and (c);

    c. may be prosecuted after the decree in accordance with s 7 of the Matrimonial Causes Act, subject to proper pleadings, joinder, evidence and all available defences; and

    d. shall not delay determination of the decree, final custody or the Springvale primary-schooling question.

16. Nothing in paragraph 15 creates, validates or amends a counterclaim that was not duly filed, nor does it determine whether any residual claim falls within s 7 of the Matrimonial Causes Act.

17. The registrar shall, as soon as reasonably practicable set down HCHF 2292/23 for preferential, continuous trial dates on the matters identified in paragraphs 4 and 12.

18. Each party shall bear his or her own costs of this application.

PHILIPS J:……

ChimukaMafunga Commercial Attorneys, applicant's legal practitioners

Venturas & Samukange, respondent's legal practitioners